SEP 13 2018

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Surrogate of the County of Mercer.
DEPUTY SURROGATE

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	: SUPERIOR COURT OF NEW JERSEY
	: CHANCERY DIVISION – PROBATE PART
	: MERCER COUNTY
IN THE MATTER OF	: DOCKET NO.: 7[redacted]
[redacted]	: **Civil Action**
AN INCAPACITATED PERSON	: **JUDGMENT APPOINTING SUBSTITUTE GUARDIAN(S) OF THE PERSON**

THIS MATTER being opened to the Court by Jacqueline R. D'Alessandro, Deputy Attorney General, on behalf of Plaintiff, Jessica Anastasi, Chief, Bureau of Guardianship Services, New Jersey Department of Human Services, in the presence of the Public Defender, attorney for [redacted] the incapacitated person, and the Honorable John E. Curry, Surrogate having previously found by Order dated April 21, 1978 that [redacted] is an incapacitated person who lacks sufficient capacity to govern himself/herself and manage his/her affairs and having appointed [redacted] as guardian(s) of the person of [redacted] and no demand having been made for a jury trial, and the court sitting without a jury having found that [redacted] continues to be in need of a guardian of the person, and it further appearing that [redacted] consent(s) to serve as guardian of the person of [redacted] in place of [redacted]

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[redacted] and the Public Defender having not contested either incapacity to the extent set forth below or the appointment of the proposed guardian, and for good cause shown:

IT IS on this 13th day of September, 2018 ***ORDERED AND ADJUDGED*** that:

1.

■ GENERAL (FULL) GUARDIANSHIP: [redacted] is an incapacitated person and is unfit and unable to govern himself/herself and manage his/her affairs in all areas relating to his/her person.

OR

☐ LIMITED GUARDIANSHIP: _____ is an incapacitated person and is unfit and unable to govern himself/herself and manage his/her affairs in all areas relating to his/her person except that _____ is fully able at this time to govern himself/herself and manage his/her own affairs with respect to the following areas:

_____

_____

_____

Check if applicable:

■ The subject of this guardianship is incapacitated as a result of a development disability.

Firearms: Pursuant to 18 U.S.C. 922 (g)(4), the incapacitated person **does not** retain the right to possess firearms.

2. [redacted] appointed guardian of the person of [redacted] by prior Order of April 21, 1978 is/~~are~~ discharged as guardian(s) of the person of [redacted]

3. GUARDIAN APPOINTMENT: [redacted] be and hereby is/~~are~~ appointed substitute guardian(s) of the person of the incapacitated person and that Amended Letters of Guardianship of the Person be issued upon his/her/their (a) qualifying according to law, (b) acknowledging to the Surrogate completion of guardianship training and receipt of the guardianship training guides.

4. Upon qualifying, the Surrogate shall issue Amended Letters of Guardianship of the Person to Alicia Adams and thereupon the guardian(s) be and hereby is/are authorized to perform all the functions and duties of a Guardian of the Person as allowed by law,

except as limited herein or in areas where the incapacitated person retains decision making rights.

5. In exercising the authority conferred by this Judgment, the guardian(s) shall:

   - Ascertain and consider those characteristics of the incapacitated person which define his/her uniqueness and individuality, including but not limited to likes, dislikes, hopes, aspirations, and fears;
   - Encourage the incapacitated person to express preferences and participate in decision-making;
   - Give the appropriate deference to the expressed wishes of the incapacitated person;
   - Protect the incapacitated person from injury, exploitation, undue influence and abuse;
   - Promote the incapacitated person's right to privacy, dignity, respect, and self-determination; and
   - Make reasonable efforts to maximize opportunities and individual skills to enhance self-direction.

6. GUARDIAN LIMITATIONS: **If applicable,** the authority of the guardian(s) is limited to follows, and all limitations shall be stated in the Amended Letters of Guardianship.

   N/A

7. The guardian(s) appointed hereunder shall be considered the personal representatives under the Standards for Privacy of Individually Identifiable Health Information ("Privacy Rule") issued pursuant to the Health Insurance Portability and Accountability Act of 1996 ("HIPAA"), and shall have full and complete access to all records of the incapacitated person.

8. The guardian appointed hereunder is also authorized to procure, approve, or otherwise secure the establishment of the prepaid funeral agreement for the benefit of [redacted] as provided for under N.J.S.A. 45:7-32, et seq.

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9. REPORTING:

■ [redacted] as Guardian(s) of the Person is/are hereby directed to file annually a report of the well-being of the incapacitated person, along with a Report of Guardian Coverage page.

OR

☐ The filing of a report of well-being is hereby waived for the reasons stated on the record.

10. The report(s) indicated in paragraph 9 above is to be filed not later than fourteen (14) days after the anniversary date of this judgment with the County Surrogate. The report to be filed by the guardian(s) shall be filed by the Surrogate and shall be made available by the Surrogate to any party in interest entitled to review pursuant to *R.* 1:38-3(e), as well as to the following parties or persons: N/A, and the reference in this judgment shall constitute a showing of a special interest as required by *R.* 1:38-3(e) for the purpose of reviewing such reports.

11. The Guardian(s) of the Person is/are hereby directed to advise the County Surrogate within ten (10) days of any changes in the address or telephone number of himself or herself or the incapacitated person or within thirty (30) days of the incapacitated person's death or of any major change in status or health. If the incapacitated person dies during the guardianship, the Guardian(s) will notify the Surrogate in writing and forward a copy of the death certificate upon receipt.

12. The Guardian(s) of the Person is/are agent(s) of the court and shall cooperate fully with any court staff, Surrogate staff, or volunteers until the guardianship is terminated by the death or return to capacity of the incapacitated person, or the Guardian's death, removal or discharge.

13. COUNSEL OR INCAPACITATED PERSON:

■ The court-appointed attorney for the alleged incapacitated person, having reported to the court and advocated on behalf of the incapacitated person, is hereby discharged with the appreciation of the court for his or her *pro bono* services, with no further obligation to act as attorney for the incapacitated person.

OR

☐ The court having reviewed the affidavit or certification of service of _____, Esquire, previously filed with the court, the Guardian of the Person shall, within _____ days of the date of this Judgment, pay _____, Esquire, court-appointed attorney for the then alleged incapacitated person, a fee of $ _____ for professional services rendered and

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$_____ for expenses incurred, which disbursements from the funds of the incapacitated person's estate are hereby approved. Court-appointed counsel, having reported to the court and advocated on behalf of the incapacitated person, be and hereby is discharged with no further obligation to act as attorney for the incapacitated person.

14. Any power of attorney previously executed by the incapacitated person, other than a power of attorney relating to the financial affairs of the incapacitated person, be and hereby is revoked. Any advance directive for healthcare previously executed by the incapacitated person is voided as to proxy designation, but the guardian(s) shall consider the preference expressed in such advance directive.

15. Plaintiff(s) shall serve a Judgment upon the Guardian(s) and all interested parties and attorneys of record within seven (7) days of receipt.

Paul Innes

Hon. Paul Innes, P.J.Ch.

Unopposed